

25STCV01595 25STCV01595

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Case Number: 25STCV01595 Hearing Date: September 9, 2026 Dept: 413

TENTATIVE RULING

HEARING

DATE: September 9, 2026

CASE NUMBER: 25STCV01595

CASE NAME: National Commercial Recovery, Inc. v. We Sub

Too, LLC, et al.

MOVING PARTY: Plaintiff National Commercial

Recovery, Inc.

OPPOSING PARTY: N/A

PROCEEDING: MOTION FOR EVIDENCE OR

ISSUE SANCTIONS

RULING SUMMARY: Plaintiff's motion for issue sanctions is granted and issues are deemed established as ordered below. Plaintiff is to give notice.

Background

This is an action on common counts. plaintiff National Commercial Recovery, Inc. alleges that between February 23, 2023 and January 31, 2024, defendants We Sub Too, LLC and David and Brian Gettler (collectively, "Defendants") purchased wholesale fabric from Plaintiff's Assignors on an open book account. Defendants became indebted to Plaintiff's Assignors in the principal amount of

\$35,011.66.

On January 22, 2025, Plaintiff filed a complaint against Defendants, alleging (1) common counts – open book account; (2) common counts – goods sold and delivered; and (3) account stated.

On June 23, 2026, Plaintiff filed its motion for issue or terminating sanctions against defendant Brian Gettler (“B. Gettler”), arguing that sanctions are warranted because he failed to comply with this Court’s May 14, 2026 Order compelling him to serve verified responses to Plaintiff’s first set of Form Interrogatories and Special Interrogatories and Demand for Production of Documents.[1]

The motion is unopposed.

Issue
sanctions

I. Legal Standard

“Misuses of the discovery process include, but are not limited to . . . Disobeying a court order to provide discovery.” (Code Civ. Proc. § 2023.010 (g).) If a party fails to comply with a court order compelling discovery responses or attendance at a deposition, the court may impose monetary, issue, evidence, or terminating sanctions. (Code Civ. Proc. §§ 2030.290(c) [interrogatories]; 2031.300(c) [demands for production of documents].)

Section 2023.030 of the Code of Civil Procedure provides:

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a)

The

court may impose a monetary sanction ordering that one engaging in the misuse

of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct . . .

(b)

The

court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.

An express finding of willfulness is not required. (*Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 620 [in issuing sanctions pursuant to section 2023.030 (b)&(c), no finding of willfulness is required].) "In the context of sanctions against a party for willful refusal to furnish discovery, it has been held that the responding party has the burden of proving the lack of willfulness of his failure to perform." (*Corns v. Miller* (1986) 181 Cal.App.3d 195, 201.)

II. Discussion

Plaintiff

moves for an order imposing issue sanctions against B. Gettler for his failure to comply with this Court's May 14, 2026 Order compelling his responses to Plaintiff's Form Interrogatories (Set 1), Special Interrogatories (Set 1), and Requests for Production (Set 1) (collectively, "Discovery Requests"). Plaintiff specifically moves for an order establishing the following issues:

1.

That defendant BRIAN GETTLER is the alter ego of defendant WE SUB TOO, LLC, and is therefore jointly and severally liable for the debt owed in this action.

2.

That the principal amount of the debt owed that is the subject of this action is \$35,011.66.

On May 14, 2026, this Court ordered that B. Gettler, "no later than June 15, 2026, serve on Plaintiff

verified responses to the Discovery Requests and produce all documents within his possession, custody or control that are responsive to the Requests for Production (Set 1). The responses shall comply with the mandatory language required for responses as provided in the Code of Civil Procedure. In particular, the responses to the Requests for Production (Set 1) shall comply with the mandatory language pursuant to Code of Civil Procedure sections 2031.220, 2031.230, and 2031.240, as applicable." (Minute Order, May 14, 2026.)

In his declaration filed in support of the motion, Plaintiff's counsel states that B. Gettler has failed to comply with this Order as of the filing of this motion. (Besnyl Decl. ¶ 5.) B. Gettler no opposition to this motion.

Under section 2023.030(b) of the Code of Civil Procedure, "[t]he court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses."

In accordance with the authority granted under section 2023.030(b), the Court, based on the findings stated below, grants Plaintiff's motion and ORDERS as follows:

1.

B. Gettler is prohibited from denying that the amount owed by We Sub Too, LLC to Plaintiff's assignors, Athletix Fabrics, Inc. and Winter Weekends is less than \$35,011.66.

2.

B. Gettler is prohibited from asserting that any credits, discounts, price modifications, returns or other offsets in regard to the amount owed of \$35,011.66, have not been credited to the account at issue in this case.

3.

The following facts are taken as established in this action:

a.

The amount owed by We Sub Too, LLC to Athletix Fabrics, Inc. and Winter Weekends is \$35,011.66;

b.

We Sub Too, LLC failed to subscribe to or issue shares;

c.

We Sub Too, LLC failed to maintain minutes or adequate corporate records;

d.

B. Gettler dominated and controlled We Sub Too, LLC and used the same office and business location as We Sub Too, LLC;

e.

B. Gettler failed to adequately capitalize We Sub Too, LLC, and We Sub Too, LLC was undercapitalized; and

f.

B. Gettler used We Sub Too, LLC as a mere shell, instrumentality, or conduit for the business of B. Gettler.

The Court finds that the imposition of issue sanctions is warranted. B. Gettler has failed to comply with the order requiring him to serve on Plaintiff verified responses to the Discovery Requests and produce all documents within his possession, custody, or control that are responsive to the Requests for Production. B. Gettler has failed to oppose this motion and/or to establish that the imposition of sanctions would be unjust. B. Gettler has offered no explanation for his failure to comply with the Court's order.

Conclusion

Plaintiff's motion for issue sanctions is GRANTED, and ORDERS as follows:

1.

B. Gettler is prohibited from denying that the

amount owed by We Sub Too, LLC to Plaintiff's assignors, Athletix Fabrics, Inc. and Winter Weekends is less than \$35,011.66.

2.

B. Gettler is prohibited from asserting that any credits, discounts, price modifications, returns or other offsets in regard to the amount owed of \$35,011.66, have not been credited to the account at issue in this case.

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The following facts are taken as established in this action:

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B. Gettler dominated and controlled We Sub Too, LLC and used the same office and business location as We Sub Too, LLC;

e.

B. Gettler failed to adequately capitalize We Sub Too, LLC, and We Sub Too, LLC was undercapitalized; and

f.

B. Gettler used We Sub Too, LLC as a mere shell, instrumentality, or conduit for the business of B. Gettler.

Plaintiff to give notice.

Date: September 9, 2026

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Although

the notice of motion states Plaintiff is moving for issue or terminating sanctions, the memorandum's analysis and conclusion only speak to issue sanctions. Thus, the court considers the motion on its merits as to issue sanctions.